

Attached please find the following for review and completion:

1. Rent Reasonableness Frequently Asked Questions (MSHDA-142)
2. Property Owner Checklist (MSHDA-52517a)
3. Request for Tenancy Approval (HUD-52517)
4. Disclosure of Information on Lead-Based Paint (MSHDA-1637b)
5. Notice and Disclosure of Select HCV Program Rules (MSHDA-51c)
6. Notice to HCV Owners and Managers Regarding VAWA (MSHDA-1632)
7. Request for Taxpayer Identification Number and Certification (IRS W-9/W-8) – Owner and Management Company
8. Payee Authorization (MSHDA-220)

Additional required documents:

1. Proof of ownership, and management agreement (if applicable)
2. Proof of current, paid property taxes for this unit.
3. Other:

All Documentation Listed Above Must Be Completed Before an Inspection Can Be Scheduled

When all required documents are received, and the unit has been determined to be affordable and rent reasonable, your Housing Agent (HA) will call to schedule an HQS Inspection. Rental Assistance cannot begin until the unit passes the inspection. For more information on the requirements for the unit to pass inspection, please refer to HUD's brochure, *A Good Place to Live!*

Requirements For Lease:

The landlord must provide a lease to MSHDA for review. While the lease is between the landlord/owner and the tenant, MSHDA must approve the lease. The lease must contain at a minimum:

- The names of the owner and the tenant:
- The unit rented (address, apartment number, and any other information needed to identify the contract unit)
- The term of the lease (initial term and any provisions for renewal)
- The amount of the monthly rent to owner
- A specification of what utilities and appliances are to be supplied by the owner, and what utilities and appliances are to be supplied by the tenant. **NOTE:** The owner of an assisted unit may not bill HCV participants for master-metered utilities unless the building is equipped with sub-meters that allow the owner to invoice the HCV participant based on **actual** consumption and utility rates for their unit **only**.
- List all persons who will live in the unit (including live-in aides). Only Landlord and MSHDA approved persons may reside in the unit.

Note: It is the landlord's responsibility to screen tenants for suitability.

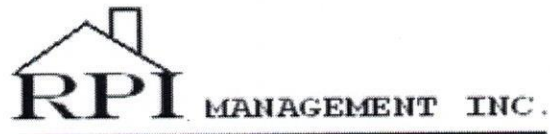
Housing Choice Voucher (HAP) Contract (HUD-52641):

The Contract is the agreement between the landlord and MSHDA. Once the unit has passed an HQS Inspection, MSHDA will prepare the Contract for your signature. The effective date of the HAP Contract must be on or after all program requirements have been met. You will receive a copy of the completed signed Contract.

No payments will be made by MSHDA until a signed copy of the HAP Contract and a properly executed Lease are received.

Return completed forms and required documents to:

RPI Management, Inc.
3 Parklane Blvd., Ste. 600 West
Dearborn, MI 48126
Phone: 313-846-4401
Fax: 313-846-4402 E-mail: mail@rpimanagement.org



3 Parklane Blvd., Ste. 600 West

Dearborn, MI 48126

Ph. 313-846-4401

Fax: 313-846-4402

Housing Agent for Michigan State Housing Development Authority

IMPORTANT NOTICE FOR COMMUNICATIONS

Please provide an e-mail address that can be shared among the tenant, landlord, and RPI Management. The e-mail addresses listed below will be used to provide updates to both parties regarding paperwork requests, status updates, inspection scheduling, etc.

If you do not wish to provide this information, you do not have to complete this form.

Tenant Name: _____

Tenant Email: _____

Landlord Name: _____

Landlord Email: _____

Thank you,
RPI Management, Inc.

What Is Rent Reasonableness?

All Public Housing Authorities are required to verify that the requested rent for subject units is reasonable. MSHDA uses Go Section 8 to complete the HUD mandated rent reasonableness process.

No unit can be approved until MSHDA has determined that the rent for the unit is reasonable. The purpose of the rent reasonableness test is to ensure that a fair rent is paid for each unit rented under the HCV program. HUD regulations define a reasonable rent as one that does not exceed the rent charged for comparable, unassisted units in the same market area. HUD also requires that owners not charge more for assisted units than for comparable units on the premises.

How Does Rent Reasonableness Work With Go Section 8?

The subject unit is compared to three (3) similar units in the surrounding area. Only one (1) of the comparable units must have a rent at or above the rent you are requesting for rent reasonableness to be approved.

- The items compared are: size, age, quality and condition, utilities included/not included in the asking rent, maintenance, parking, and amenities for the unit.
- Comparable units are selected by Go Section 8 based on the information that you provide in the Request for Tenancy Approval (RFTA) form and the Property Owner Checklist-Proposed Unit form for the subject unit.
- The unit available for rent must have a high percentage of similarity and credibility when reviewed against comparable units in the surrounding area.
 - Similarity: If the subject unit does not exactly match the identified comparable units, positive and negative adjustments will be made to increase the similarity.
 - Credibility: The rent you are requesting is compared to listed properties in the surrounding area to determine if the requested price is realistic.

How Can I Avoid Delays And Make This Process Work For Me?

Complete the attached RFTA and RFTA Cover Sheet completely and accurately the first time.

- If either document is incomplete, it will be sent back to you to complete before the process can begin.
- Review the attached Unit Definitions and select the proper unit type.
- Accuracy is extremely important! The information you select will impact whether the asking rent is comparable.
- During the inspection, all items will be verified including the unit type. If the information provided is incorrect, the comparability process will start over with the accurate data after inspection.

If the requested rent is denied, it is very important that you take the time to fill out the Comparable Dispute Form completely and accurately. You can receive a Comparable Dispute form from your Housing Agent.

- **Do not submit the subject unit as a comparable unit; it must be a different unit.**
- Do not submit a comparable unit that is receiving subsidy.
- Complete the form with information for a similar unit type that is comparable in square footage, bedroom/bathroom size, year built, amenities, and utilities.
 - Remember: The more similar a comparable unit is to the subject unit the more likely the requested rent will be approved.
- Submit the rent roll for the property or an active advertisement to support the requested rent of the subject unit.

List your vacant units at www.michiganhousinglocator.com and these will be used in future rent reasonableness comparisons. It is free to list your properties and MSHDA refers all applicants and tenants to this website to find available housing.

☐ Initial Occupancy	☐ Rent Increase	Proposed Effective Date of Rent Increase:
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Unit Information		
Tenant Name:		
Unit Address:		Apt:
City:	State:	Zip:
Number of Bedrooms:	Number of Full Bathrooms:	Number of Half Bathrooms:
Unit Square Footage:	Year Built:	Proposed Contract Rent:
Barrier-Free Unit? ☐ Yes ☐ No		County:

Unit Building Type (Check one): See Page 2 For Definitions	
☐ High-rise (5+ Stories)	Select High-rise apartment building on attached HUD-52517 form.
☐ Low-rise	Select Low-rise apartment building on attached HUD-52517 form.
☐ Townhouse	Select Rowhouse/Townhouse on attached HUD-52517 form.
☐ Duplex	Select Semi-Detached on attached HUD-52517 form.
☐ Triplex	Select Semi-Detached on attached HUD-52517 form.
☐ Fourplex	Select Semi-Detached on attached HUD-52517 form.
☐ Single Family	Select Single Family Detached on attached HUD-52517 form.
☐ Manufactured Home	Select Manufactured Home on attached HUD-52517 form.

Features Available In The Unit (Check all that apply):	
Water	☐ City Water ☐ Well Water
Sewer	☐ Public Sewer ☐ Septic System
Cooling System	☐ Central ☐ Window/Wall ☐ None ☐ Other:
Heating System	☐ Baseboard ☐ Boiler ☐ Central ☐ Furnace ☐ Other:
Indoor	☐ Cable TV Included ☐ Ceiling Fans ☐ Dryer ☐ Washer ☐ Washer/Dryer Hookups Only ☐ Onsite Laundry (Not in Unit)
Kitchen	☐ Dishwasher ☐ Garbage Disposal ☐ Microwave ☐ Refrigerator ☐ Range/Stove
Outdoor	☐ Balcony ☐ Pool ☐ Gated Community
Parking	Garage: ☐ 1 Car ☐ 2 Car ☐ 3 Car Covered Space: ☐ 1 Car ☐ 2 Car
Maintenance	☐ Lawn ☐ Pest Control ☐ Trash

Property Owner		
Business Name:		Business SSN/FEIN:
Owner Name:		
Phone:	Fax:	Email:
Management Company/Payee		
☐ Check Here if Same as Property Owner		
Business Name:		Business SSN/FEIN:
Contact Name:		
Phone:	Fax:	Email:

Head of Household Name:	Last 4 SSN:
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Unit Building Type Definitions	
High-rise	A single level unit in a building structure containing five or more stories, three or more units, with or without an elevator. An uninhabitable basement does not count as a story. However, garden level apartments, lobbies, and commercial space should be included as a story. Also includes all units located within a mixed use (residential/commercial) building with five or more stories.
Low-rise	A single level unit in a building structure that contains four or less stories, three or more units, with or without an elevator, and is not a three or four unit converted single family home. An uninhabitable basement does not count as a story. However, garden level apartments, lobbies, and commercial space should be included as a story. Includes flats containing three or more units, converted single family homes containing five or more units, and all units located within a mixed use (residential/commercial) building with four or less stories.
Townhouse	A multi-level unit in a building structure containing three or more units, side-by-side, under one roof, where no unit is above or partially above another unit within the walls extending from the basement to the roof, and no space in the building is used for commercial business.
Duplex	A unit in a building structure containing exactly two units, under one roof, where one unit is above, partially above, or beside another unit, and no space in the building is used for commercial business. Also, includes a building structure originally intended for occupancy by one single family that has been converted to separate dwellings for two households. Includes a two unit flat.
Triplex	A unit in a building structure originally intended for occupancy by one single family that has been converted to separate dwellings for three households, and no space in the building is used for commercial business.
Fourplex	A unit in a building structure originally intended for occupancy by one single family that has been converted to separate dwellings for four households, and no space in the building is used for commercial business.
Single Family Detached	A unit in a building structure containing exactly one unit that houses one family, under one roof. Also, includes modular homes (A building structure that is built offsite and assembled permanently onto a foundation).
Manufactured Home	A unit in a building structure built on a movable chassis and moved to the site. It may be placed on a permanent or temporary foundation and may contain one or more rooms on one story; includes mobile home.

Owner Certification

I certify that I have completed this form and all information has been accurately reported. I understand that providing false or incomplete information may result in a delay or denial of family voucher assistance in the proposed unit.

Printed Name of Owner/Owner Representative:

Title of Owner/Owner Representative:

Signature:

Date:

Return the completed documents to:

RPI Management, Inc.
3 Parklane Blvd., Ste. 600 West
Dearborn, MI 48126
Phone: 313-846-4401
Fax: 313-846-4402
E-mail: mail@rpimanagement.org

MSHDA USE ONLY

Date RFTA Packet Received:

Date Revised RFTA Packet Mailed to Owner and Tenant:

Date RFTA Packet Confirmed via HQS (View HUD-52580):

12. Owner's Certifications

- a. The program regulation requires the PHA to certify that the rent charged to the housing choice voucher tenant is not more than the rent charged for other unassisted comparable units. Owners of projects with more than 4 units must complete the following section for most recently leased comparable unassisted units within the premises.

Address and unit number	Date Rented	Rental Amount
1.		
2.		
3.		

- b. The owner (including a principal or other interested party) is not the parent, child, grandparent, grandchild, sister or brother of any member of the family, unless the PHA has determined (and has notified the owner and the family of such determination) that approving leasing of the unit, notwithstanding such relationship, would provide reasonable accommodation for a family member who is a person with disabilities.

- c. Check one of the following:

- ☐ Lead-based paint disclosure requirements do not apply because this property was built on or after January 1, 1978.
- ☐ The unit, common areas servicing the unit, and exterior painted surfaces associated with such unit or common areas have been found to be lead-based paint free by a lead-based paint inspector certified under the Federal certification program or under a federally accredited State certification program.
- ☐ A completed statement is attached containing disclosure of known information on lead-based paint and/or lead-based paint hazards in the unit, common areas or exterior painted surfaces, including a statement that the owner has provided the lead hazard information pamphlet to the family.

13. The PHA has not screened the family's behavior or suitability for tenancy. Such screening is the owner's responsibility.

14. The owner's lease must include word-for-word all provisions of the HUD tenancy addendum.

15. The PHA will arrange for inspection of the unit and will notify the owner and family if the unit is not approved.

Print or Type Name of Owner/Owner Representative		Print or Type Name of Household Head	
Owner/Owner Representative Signature		Head of Household Signature	
Business Address		Present Address	
Telephone Number	Date (mm/dd/yyyy)	Telephone Number	Date (mm/dd/yyyy)

Request for Tenancy Approval

Housing Choice Voucher Program

U.S Department of Housing and Urban Development

Office of Public and Indian Housing

OMB Approval No. 2577-0169

exp. 7/31/2022

The public reporting burden for this information collection is estimated to be 30 minutes, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. The Department of Housing and Urban Development (HUD) is authorized to collect the information on this form by Section 8 of the U.S. Housing Act (42 U.S.C. 1437f). Form is only valid if it includes an OMB Control Number. HUD is committed to protecting the privacy of individuals' information stored electronically or in paper form, in accordance with federal privacy laws, guidance, and best practices. HUD expects its third-party business partners, including Public Housing Authorities, who collect, use maintain, or disseminate HUD information to protect the privacy of that information in Accordance with applicable law.

When the participant selects a unit, the owner of the unit completes this form to provide the PHA with information about the unit. The information is used to determine if the unit is eligible for rental assistance. HUD will not disclose this information except when required by law for civil, criminal, or regulatory investigations and prosecutions.

1. Name of Public Housing Agency (PHA)			2. Address of Unit (street address, unit #, city, state, zip code)		
3. Requested Lease Start Date	4. Number of Bedrooms	5. Year Constructed	6. Proposed Rent	7. Security Deposit Amt	8. Date Unit Available for Inspection
9. Structure Type			10. If this unit is subsidized, indicate type of subsidy:		
☐ Single Family Detached (one family under one roof)			☐ Section 202 ☐ Section 221(d)(3)(BMIR)		
☐ Semi-Detached (duplex, attached on one side)			☐ Tax Credit ☐ HOME		
☐ Rowhouse/Townhouse (attached on two sides)			☐ Section 236 (insured or uninsured)		
☐ Low-rise apartment building (4 stories or fewer)			☐ Section 515 Rural Development		
☐ High-rise apartment building (5+ stories)			☐ Other (Describe Other Subsidy, including any state or local subsidy) _____		
☐ Manufactured Home (mobile home)					

11. Utilities and Appliances

The owner shall provide or pay for the utilities/appliances indicated below by an "O". The tenant shall provide or pay for the utilities/appliances indicated below by a "T". Unless otherwise specified below, the owner shall pay for all utilities and provide the refrigerator and range/microwave.

Item	Specify fuel type	Paid by
Heating	☐ Natural gas ☐ Bottled gas ☐ Electric ☐ Heat Pump ☐ Oil ☐ Other	
Cooking	☐ Natural gas ☐ Bottled gas ☐ Electric ☐ Other	
Water Heating	☐ Natural gas ☐ Bottled gas ☐ Electric ☐ Oil ☐ Other	
Other Electric		
Water		
Sewer		
Trash Collection		
Air Conditioning		
Other (specify)		
Refrigerator		Provided by
Range/Microwave		

HOUSING CHOICE VOUCHER PROGRAM

Disclosure of Information on Lead-based Paint and Its Hazards

Lead Warning Statement

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust, can pose health hazards if not taken care of properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, landlords must disclose the presence of known lead-based paint or lead-based paint hazards in the dwelling. Applicant/participant must also receive a federally-approved pamphlet on lead poisoning prevention.

Owner/Landlord Disclosure (initial)

_____ (a) Presence of lead-based paint or lead-based paint hazards (check one below):

☐ Known lead-based paint or lead based paint hazards are present in the unit (explain):

☐ Owner/Landlord has no knowledge of lead-based paint or lead-based paint hazards in the unit.

_____ (b) Records and reports available to the Owner/Landlord (check one below):

☐ Owner/Landlord has provided the Applicant/participant with all available records and reports pertaining to lead-based paint or lead-based paint hazards in the unit (list documents below):

☐ Owner/Landlord has no reports or records pertaining to lead-based paint or lead-based paint hazards in the unit.

Applicant/Participant's Acknowledgment (initial)

_____ (c) Applicant/participant has received copies of all information listed above.

_____ (d) Applicant/participant has received the pamphlet, *Protect Your Family from Lead in Your Home*.

Owner's Agent Acknowledgment (initial)

_____ (e) Owner's/Landlord's Agent has informed the Owner/Landlord of the Owner/Landlord obligations under 42 U.S.C. 4852(d) and is aware of his responsibility to ensure compliance.

Certification of Accuracy

The following parties have reviewed the information above and certify, to the best of their knowledge, that the information provided by the signatory is true and accurate.

Owner/Landlord Signature

Date

Owner's Agent Signature

Date

Applicant/Participant Signature

Date

Si usted no puede leer este documento porque no lee Ingles, o requiere que esta comunicacion sea interpretada o traducida y nadie que usted conoce se la puede traducir, por favor llame a nuestra oficina para una interpretacion o traduccion gratuita. El numero de telefono de nuestra oficina es 517.373-9344.

If you or a member of your household is a disabled person and require a reasonable accommodation in order to participate in MSHDA's affordable housing program(s) or services, please submit your request to your Housing Agent. We prefer that your request be submitted in writing. If you are unable to submit a written request for a reasonable accommodation, you may make your request by calling your Housing Agent at the phone number provided to you.

The undersigned hereby certifies that the property located at (full address):

is in compliance with the Housing Quality Standards (HQS) requirements related to lead-based paint as indicated below (Check ALL appropriate boxes):

- ☐ A Risk Assessment has been conducted on the described property, including dwelling units, common areas, and exterior painted surfaces, and a certified lead-based paint inspector has found it to be free of lead-based paint. The lead-free certification is either attached or has already been provided to the Michigan State Housing Development Authority (MSHDA).
- ☐ A Risk Assessment has been conducted on the described property by a certified lead-based paint inspector and lead-based paint was identified. All identified lead-based paint hazards have been removed from the property, and the reports of the lead-based paint inspector and the clearance exam are attached or have already been provided to MSHDA.
- ☐ Because the described property was constructed prior to January 1, 1978 and there is a child under 6 years of age in residence, ongoing lead-based paint maintenance activities have been incorporated into regular building operations in accordance with 24 CFR 35.1355(a).
- ☐ Corrective action to address lead-based paint hazards at the described property that were required by MSHDA to meet HQS, have been completed in accordance with all requirements established by 24 CFR Part 35, including (The boxes below do not apply when paint stabilization is below "De Minimis" levels):
- ☐ The work was completed by persons trained to conduct lead-hazard reduction activities or was supervised by a certified lead-based paint abatement supervisor.
 - ☐ Occupants of the dwelling unit(s) and their belongings were protected during the course of the work.
 - ☐ The lead hazard work site was properly prepared and maintained during the course of the work.
 - ☐ A person certified to conduct clearance examinations performed a clearance test and the result indicated that clearance was achieved.
 - ☐ Occupants have been properly notified of the results of any lead-based paint hazard evaluation and reduction, including the results of the clearance examination.

Owner's Signature: _____

Printed Name: _____ Date: _____

Housing Agent Contact Information:
 RPI Management, Inc.
 3 Parklane Blvd., Ste. 600 West
 Dearborn, MI 48126
 Phone: 313-846-4401
 Fax: 313-846-4402
 E-mail: mail@rpimanagement.org

MSHDA USE ONLY	
Participant's	
Name:	_____
Social	_____
Security #:	XXX-XX-_____
HA:	_____

HOUSING CHOICE VOUCHER PROGRAM Notice and Disclosure of Select HCV Rules and Regulations

Head of Household Name: _____

Last 4 SSN: _____

Household Composition:

- Tenant/participant must inform MSHDA of any changes in family composition or contact information within 10 business days of the date of the change.
- Tenant/participant cannot add any other persons to the household without prior written approval by the landlord/owner and MSHDA except when adding a child by birth, adoption, or custody awarded by the court. In order for the child to be added to the household, the tenant/participant must inform MSHDA and the landlord/owner.
- Landlord/owner must report a move out or tenant death to MSHDA within 10 business days and return all overpaid Housing Assistance Payments (HAP).

Rental Amount and Payments:

- The landlord/owner is responsible for collecting the tenant's portion of the monthly rent.
- The monthly rent cannot exceed reasonable rent and affordability as determined by MSHDA.
- Assuming the monthly rent is reasonable, MSHDA will contract for payment of the difference between the contract rent and tenant's portion.
- Rent cannot exceed rent charged for other comparable units on the premises. Upon request, landlords must provide MSHDA with rent information for other units they manage/own.
- Payments cannot begin prior to the unit passing inspection, regardless of the move-in date.
- MSHDA will notify both the tenant/participant and landlord/owner in writing of any changes in the payments.
- The tenant/participant pays the landlord/owner only the amount stated in the Adjustment Notification except when paying a late charge as described in the lease.
- The landlord/owner must notify MSHDA if the tenant/participant is not making their rental payments, and enforce the terms of the lease, including eviction action for non-payment of the tenant rent portion.
- If the landlord/owner receives payment(s) which should not be made under the terms of the HAP Contract, the landlord/owner is responsible to notify MSHDA immediately. Failure to do so may result in the landlord/owner being disapproved for participation in the Program, and the overpaid HAP referred to the Department of Treasury for collections.
- **Rent Adjustments:** After the initial lease term, rent increases must be requested by the landlord/owner to MSHDA at least 60 days in advance of the date the change will take effect. The monthly rent may be increased (subject to the program rent reasonableness requirement). However, the tenant/participant may be responsible for paying any increase.

Housing Quality Standards Inspection:

- MSHDA **must inspect** the unit at least every two years. Any necessary repairs must be completed within 30 days unless otherwise noted. Life-threatening violations must be corrected within 24 hours.
- If repairs are required, MSHDA will forward a notice of deficiencies to both the tenant/participant and landlord/owner.
- The landlord/owner must be allowed access to the unit to make repairs. MSHDA must be allowed to inspect the unit at reasonable times with reasonable notice.
- The tenant/participant and the landlord/owner must maintain the housing unit in a decent, safe, and sanitary condition.
- The tenant/participant assumes total responsibility for any damages caused by their family or guests.

Additional Tenant/Participant Obligations:

- Inform MSHDA of any changes in household income within 10 business days of the date of the change.
- At MSHDA's request, complete a reexamination of family income and household composition at least annually.
- Report all cash contributions/financial assistance received on an ongoing basis from person(s) not living in the household or from any organization to assist with rent payments, utility payments, car payments, phone, internet, etc.
- Not allow any visitor/guests to occupy the unit for more than 14 consecutive days or a total of 30 cumulative calendar days during any 12-month period (the rental unit is a private dwelling for the sole use of the assisted household).
- Not allow anyone to use the address of the assisted unit unless they are an approved member of the household. This includes for mail delivery, vehicle registration, driver's license and state ID registration, etc.

Additional Tenant/Participant Obligations (Continued):

- Give a written 30-day notice to the landlord/owner and get approval from MSHDA prior to vacating a unit.
- Not assign the lease nor sublet the unit.
- Not engage in any criminal activity (including illegal drug use and abuse of alcohol). While marijuana is legal in the state of Michigan, it is still considered a Controlled Substance by the federal government and is prohibited in federally assisted housing programs.
- Pay utility bills and provide and maintain any appliances that the owner is not required to provide under the lease.
- Not give the landlord/owner any money beyond what the HAP Contract/Adjustment Notification states as assigned by MSHDA. Do not enter into any "side-lease" arrangement with the landlord. The lease approved by MSHDA is the only lease allowed.
- Abide by all conditions of the lease, including paying the tenant portion of the rent on time.
- Not be related to the landlord/owner. This means, the landlord/owner cannot be a parent, child, grandparent, grandchild, sister, brother, in-law, or stepfamily to any household member unless MSHDA has granted pre-approval to provide a reasonable accommodation for a family member with disabilities.
- Not have any interest or ownership in the assisted unit.
- Report any notification of foreclosure immediately to MSHDA.
- Notify MSHDA in writing at least 10 business days before leaving their unit if they are going to be absent from the unit for more than three consecutive weeks.

Additional Landlord/Owner Obligations:

- List all authorized members of an assisted unit on the lease and report unauthorized persons/activity to MSHDA.
- Report to MSHDA any changes in contact information (physical mailing address, telephone number, etc.).
- Report any changes in ownership, or management company, immediately as they occur to MSHDA.
- Not engage in any criminal activity.
- Report any police calls to the unit to MSHDA.
- Report violations of utility usage to MSHDA such as disconnected utilities, illegal connection to utilities, etc.
- Not accept nor charge tenant any additional moneys beyond what is stated in the HAP Contract/Adjustment Notification as assigned by MSHDA.
- Not enter into any "side-lease" agreement with the tenant. The lease approved by MSHDA is the only lease allowed.
- Enforce the terms of the lease, and immediately report to MSHDA any tenant lease violations (including failure to pay the tenant portion of the rent) and/or eviction actions to MSHDA.
- Not reside in the assisted unit.
- Report any impending foreclosure action and/or change of ownership immediately to MSHDA (do NOT forward HAP payments to the new owner).
- Not be related (parent, child, grandparent, grandchild, sister, brother, in-law, or stepfamily) to any household member of the tenant family unless MSHDA has granted pre-approval to provide a reasonable accommodation for a family member with disabilities.
- Follow all laws and regulations governing tenant/landlord relationships.
- Make repairs to the unit as required and notify MSHDA of any corrected deficiencies by the specified date.
- Must adhere to local rental property registration and code requirements.

All HCV Program tenant and landlord/owner participants must sign this form as a condition of their participation with the Program. Please note that this list does not include ALL regulations that govern the HCV Program but is intended to showcase those that require additional emphasis. Tenants and Landlords are advised to review and retain all documents related to the HCV Program and follow all obligations.

Certification: As a tenant or landlord/owner participant in the Housing Choice Voucher Program, I certify that I have reviewed the rules that govern the Program, and understand that failure to abide by them may result in termination of HCV assistance, and the HAP Contract, and MSHDA will pursue collection of any overpaid HAP or UAP that results from rules violations.

Tenant Printed Name:	Last 4 SSN:
Tenant Signature: X	Date:
Landlord/Owner Printed Name:	
Landlord/Owner Signature:	Date:

Request for Taxpayer Identification Number and Certification

Give Form to the
requester. Do not
send to the IRS.

► Go to www.irs.gov/FormW9 for instructions and the latest information.

Print or type.
See Specific Instructions on page 3.

1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.	
2 Business name/disregarded entity name, if different from above	
3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. Check only one of the following seven boxes. ☐ Individual/sole proprietor or single-member LLC ☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=Partnership) ► _____ Note: Check the appropriate box in the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is not disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner. ☐ Other (see instructions) ► _____	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from FATCA reporting code (if any) _____ (Applies to accounts maintained outside the U.S.)
5 Address (number, street, and apt. or suite no.) See instructions.	Requester's name and address (optional)
6 City, state, and ZIP code	
7 List account number(s) here (optional)	

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number									
				-					
or									
Employer identification number									
				-					

Part II Certification

Under penalties of perjury, I certify that:

- The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
- I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
- I am a U.S. citizen or other U.S. person (defined below); and
- The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign
Here

Signature of
U.S. person ►

Date ►

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid)

- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)
- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding, later.

HOUSING CHOICE VOUCHER PROGRAM

Payee Authorization

Housing Agent:

Tenant Name:

PART 1A: Transaction Type
☐ New Account

☐ Change Account (Specify in Part 1B)

☐ Cancel Account

PART 1B: Change Reason (Not required for New Account)
☐ Change Tax ID - Previous Tax ID:

☐ Change Address (Skip Part 4)

☐ Payee Name (Skip Parts 3 & 4)

☐ Change Financial Information (Skip Part 3)

☐ Other:

PART 2: Payee Information

Payee Name (Must Match IRS W-9 Form)

Tax ID (Must be 9-digit number)

Social Security Number (SSN)

OR

Federal Employer Identification Number (FEIN)

Type of Ownership (Must Match IRS W-9 Form)

☐ Individual/Sole Proprietorship

☐ Partnership

☐ Limited Liability Company (LLC)

☐ C Corporation

☐ S Corporation

☐ Trust/Estate

☐ Non-Profit

☐ Public Housing Authority (PHA)

PART 3: Contact Information

Physical Address (Cannot be a P.O. Box)

City:

State:

Zip Code:

Mailing Address (P.O. Box allowed)

☐ Check if same as above.

City:

State:

Zip Code:

1099 Address (P.O. Box allowed)

☐ Check if same as above.

City:

State:

Zip Code:

Work Phone:

Home Phone:

Cell phone:

Fax:

Email:

Payee Name (Must match IRS W-9 Form)	Last 4 Tax ID:
--------------------------------------	----------------

PART 4: Financial Information for Direct Deposit

Name of Financial Institution

Type of Account ☐ Checking ☐ Savings

Ownership of Account ☐ Individual (Self) ☐ Business ☐ Joint

Routing Transit Number

Customer Account Number



Call your financial institution to make sure they will accept direct deposits.



Verify your account number and routing transit number with your financial institution



Do not use a deposit slip to verify the routing number.

Routing Transit Number

Account Number

JOHN or MARY PUBLIC
123 Main Street
Your Town, CA 12345

1234

19

PAY TO THE
ORDER OF

\$

Your Town Bank
Your Town, CA 12345

DOLLARS

For

⑆258888885⑆ 1234556789022⑆

NOTE: THE ACCOUNT AND ROUTING NUMBER MAY APPEAR IN DIFFERENT PLACES ON YOUR CHECK.

PART 5: Authorizing Signature

By signing this authorization form, I permit the Michigan State Housing Development Authority (the Authority) to deposit payments by electronic funds transfer into the account specified in Part 4. I also authorize the debit of amounts deposited in error and any financial adjustments deemed necessary by the Authority.

I understand that providing incomplete or inaccurate information may delay my payments.

This authorization will remain in effect until the Authority has received written notice from the undersigned to terminate financial transactions. The undersigned is responsible for notifying the Authority of any change in information contained within this agreement.

Printed Name of Account Owner

Signature of Account Owner **X**

Date:

Please complete both sides of this form and return to:

RPI Management, Inc.
3 Parklane Blvd., Ste. 600 West
Dearborn, MI 48126
Phone: 313-846-4401
Fax: 313-846-4402 E-mail: mail@rpimanagement.org

**Please Attach A Voided
Check With Your
Paperwork!**

Please retain for your record

Terms and conditions for Payment with the
Michigan State Housing Development Authority
Housing Choice Voucher Program

If you are participating in the Housing Choice Voucher Program, your Housing Assistance Payment will be directly deposited into your checking or savings account at the financial institution of your choice.

The following are the terms and conditions for receiving payments:

1. You must complete this authorization form in its entirety. A legible, signed, and dated form is required for processing. You must attach a voided check to the *Payee Authorization* form. Once your form is received, there may be a 2-4 week administrative processing period before the enrollment will become effective.
2. All funds will be credited to your bank account no later than the 5th calendar day of each month.
3. If a payment cannot be made to your bank account or if the payment is returned to MSHDA, all future payments will be held while the cause is investigated. Reinstatement of payment will be determined on a case-by-case basis and you will be notified of the action taken.
4. It is your responsibility to notify MSHDA immediately if there are any changes to your account information, including, but not limited to, account closure or a change in your account number. Complete the *Payee Authorization* form by marking the CHANGE box and specify the new account information. Attach a voided check to any change requests.

All changes must be received by the 15th of the month prior to the month the payment is to be processed. There may be a 2-4 week administrative processing period before the changes become effective.

5. MSHDA reserves the right to cancel your participation in the Housing Choice Voucher Program for program violations or if notification is received from the Internal Revenue Service (IRS) or other authorized governmental agency.

If you have any questions regarding the *Payee Authorization* or W-9 forms, please send your inquiry to hcvpayment@michigan.gov.

View your payments online with Partner Portal!

Partner Portal is an online tool that allows MSHDA Housing Choice Voucher (HCV) Program landlords to review information about their payments and tenants at their convenience, without having to call or visit your local Housing Agent office or MSHDA. For new landlord accounts, please allow up to 30 days for information to begin appearing on Partner Portal. To create an account:

1. Go to michigan.gov/mshda and click on RENTAL in the top menu.

Click on the  button then the  button
- OR -

Go directly to Partner Portal at:

<https://mshda.partnerinhousing.com/View/Security/Login.aspx>

2. Select the Create an Account link.
3. More information about Partner Portal can be found on the MSHDA Landlord page at the link above.

TENANCY ADDENDUM
Section 8 Tenant-Based Assistance
Housing Choice Voucher Program
(To be attached to Tenant Lease)

U.S. Department of Housing
and Urban Development
Office of Public and Indian Housing

OMB Approval No. 2577-0169
exp. 7/31/2022

The Tenancy Addendum is part of the HAP contract and lease. Public reporting burden for this collection of information is estimated to average 0.5 hours. This includes the time for collection, reviewing and reporting the data. The information is being collected as required by 24 CFR 982.451 which in part states the PHA must pay the housing assistance payment promptly. This agency may not conduct or sponsor, and a person is not required to respond to a collection of information unless there is a valid OMB number. Assurances of confidentiality are not provided under this section.

HUD is committed to protecting the privacy of an individual's information stored electronically or in paper form in accordance with federal privacy laws, guidance and best practices. HUD expects its third-party business partners including Public Housing Authorities who collect, use, maintain, or disseminate HUD information to protect the privacy of that information in accordance with applicable law.

1. Section 8 Voucher Program

- a. The owner is leasing the contract unit to the tenant for occupancy by the tenant's family with assistance for a tenancy under the Section 8 housing choice voucher program (voucher program) of the United States Department of Housing and Urban Development (HUD).
- b. The owner has entered into a Housing Assistance Payments Contract (HAP contract) with the PHA under the voucher program. Under the HAP contract, the PHA will make housing assistance payments to the owner to assist the tenant in leasing the unit from the owner.

2. Lease

- a. The owner has given the PHA a copy of the lease, including any revisions agreed by the owner and the tenant. The owner certifies that the terms of the lease are in accordance with all provisions of the HAP contract and that the lease includes the tenancy addendum.
- b. The tenant shall have the right to enforce the tenancy addendum against the owner. If there is any conflict between the tenancy addendum and any other provisions of the lease, the language of the tenancy addendum shall control.

3. Use of Contract Unit

- a. During the lease term, the family will reside in the contract unit with assistance under the voucher program.
- b. The composition of the household must be approved by the PHA. The family must promptly inform the PHA of the birth, adoption or court-awarded custody of a child. Other persons may not be added to the household without prior written approval of the owner and the PHA.
- c. The contract unit may only be used for residence by the PHA-approved household members. The unit must be the family's only residence. Members of the household may engage in legal profit making activities incidental to primary use of the unit for residence by members of the family.
- d. The tenant may not sublease or let the unit.
- e. The tenant may not assign the lease or transfer the unit.

4. Rent to Owner

- a. The initial rent to owner may not exceed the amount approved by the PHA in accordance with HUD requirements.
- b. Changes in the rent to owner shall be determined by the provisions of the lease. However, the owner may not raise the rent during the initial term of the lease.
- c. During the term of the lease (including the initial term of the lease and any extension term), the rent to owner may at no time exceed:

- (1) The reasonable rent for the unit as most recently determined or redetermined by the PHA in accordance with HUD requirements, or
- (2) Rent charged by the owner for comparable unassisted units in the premises.

5. Family Payment to Owner

- a. The family is responsible for paying the owner any portion of the rent to owner that is not covered by the PHA housing assistance payment.
- b. Each month, the PHA will make a housing assistance payment to the owner on behalf of the family in accordance with the HAP contract. The amount of the monthly housing assistance payment will be determined by the PHA in accordance with HUD requirements for a tenancy under the Section 8 voucher program.
- c. The monthly housing assistance payment shall be credited against the monthly rent to owner for the contract unit.
- d. The tenant is not responsible for paying the portion of rent to owner covered by the PHA housing assistance payment under the HAP contract between the owner and the PHA. A PHA failure to pay the housing assistance payment to the owner is not a violation of the lease. The owner may not terminate the tenancy for nonpayment of the PHA housing assistance payment.
- e. The owner may not charge or accept, from the family or from any other source, any payment for rent of the unit in addition to the rent to owner. Rent to owner includes all housing services, maintenance, utilities and appliances to be provided and paid by the owner in accordance with the lease.
- f. The owner must immediately return any excess rent payment to the tenant.

6. Other Fees and Charges

- a. Rent to owner does not include cost of any meals or supportive services or furniture which may be provided by the owner.
- b. The owner may not require the tenant or family members to pay charges for any meals or supportive services or furniture which may be provided by the owner. Nonpayment of any such charges is not grounds for termination of tenancy.
- c. The owner may not charge the tenant extra amounts for items customarily included in rent to owner in the locality, or provided at no additional cost to unsubsidized tenants in the premises.

7. Maintenance, Utilities, and Other Services

a. Maintenance

- (1) The owner must maintain the unit and premises in accordance with the HQS.
- (2) Maintenance and replacement (including redecoration) must be in accordance with the standard practice for the building concerned as established by the owner.

b. Utilities and appliances

- (1) The owner must provide all utilities needed to comply with the HQS.
- (2) The owner is not responsible for a breach of the HQS caused by the tenant's failure to:
 - (a) Pay for any utilities that are to be paid by the tenant.
 - (b) Provide and maintain any appliances that are to be provided by the tenant.

c. **Family damage.** The owner is not responsible for a breach of the HQS because of damages beyond normal wear and tear caused by any member of the household or by a guest.

d. **Housing services.** The owner must provide all housing services as agreed to in the lease.

8. Termination of Tenancy by Owner

a. **Requirements.** The owner may only terminate the tenancy in accordance with the lease and HUD requirements.

b. **Grounds.** During the term of the lease (the initial term of the lease or any extension term), the owner may only terminate the tenancy because of:

- (1) Serious or repeated violation of the lease;
- (2) Violation of Federal, State, or local law that imposes obligations on the tenant in connection with the occupancy or use of the unit and the premises;
- (3) Criminal activity or alcohol abuse (as provided in paragraph c); or
- (4) Other good cause (as provided in paragraph d).

c. Criminal activity or alcohol abuse

- (1) The owner may terminate the tenancy during the term of the lease if any member of the household, a guest or another person under a resident's control commits any of the following types of criminal activity:
 - (a) Any criminal activity that threatens the health or safety of, or the right to peaceful enjoyment of the premises by, other residents (including property management staff residing on the premises);
 - (b) Any criminal activity that threatens the health or safety of, or the right to peaceful enjoyment of their residences by, persons residing in the immediate vicinity of the premises;
 - (c) Any violent criminal activity on or near the premises; or
 - (d) Any drug-related criminal activity on or near the premises.
- (2) The owner may terminate the tenancy during the term of the lease if any member of the household is:

(a) Fleeing to avoid prosecution, or custody or confinement after conviction, for a crime, or attempt to commit a crime, that is a felony under the laws of the place from which the individual flees, or that, in the case of the State of New Jersey, is a high misdemeanor; or

(b) Violating a condition of probation or parole under Federal or State law.

(3) The owner may terminate the tenancy for criminal activity by a household member in accordance with this section if the owner determines that the household member has committed the criminal activity, regardless of whether the household member has been arrested or convicted for such activity.

(4) The owner may terminate the tenancy during the term of the lease if any member of the household has engaged in abuse of alcohol that threatens the health, safety or right to peaceful enjoyment of the premises by other residents.

d. Other good cause for termination of tenancy

- (1) During the initial lease term, other good cause for termination of tenancy must be something the family did or failed to do.
- (2) During the initial lease term or during any extension term, other good cause may include:
 - (a) Disturbance of neighbors,
 - (b) Destruction of property, or
 - (c) Living or housekeeping habits that cause damage to the unit or premises.
- (3) After the initial lease term, such good cause may include:
 - (a) The tenant's failure to accept the owner's offer of a new lease or revision;
 - (b) The owner's desire to use the unit for personal or family use or for a purpose other than use as a residential rental unit; or
 - (c) A business or economic reason for termination of the tenancy (such as sale of the property, renovation of the unit, the owner's desire to rent the unit for a higher rent).
- (4) The examples of other good cause in this paragraph do not preempt any State or local laws to the contrary.

9. Protections for Victims of Domestic Violence, Dating Violence, Sexual Assault, or Stalking

- a. **Purpose:** This section incorporates the protections for victims of domestic violence, dating violence, sexual assault, or stalking in accordance with subtitle N of the Violence Against Women Act of 1994, as amended (codified as amended at 42 U.S.C. 14043e et seq.) (VAWA) and implementing regulations at 24 CFR part 5, subpart L.
- b. **Conflict with other Provisions:** In the event of any conflict between this provision and any other provisions included in Part C of the HAP contract, this provision shall prevail.
- c. **Effect on Other Protections:** Nothing in this section shall be construed to supersede any provision of any Federal, State, or local law that provides greater protection than this section for victims of domestic violence, dating violence, sexual assault, or stalking.

d. **Definition:** As used in this Section, the terms “actual and imminent threat,” “affiliated individual,” “bifurcate,” “dating violence,” “domestic violence,” “sexual assault,” and “stalking” are defined in HUD’s regulations at 24 CFR part 5, subpart L. The terms “Household” and “Other Person Under the Tenant’s Control” are defined at 24 CFR part 5, subpart A.

e. **VAWA Notice and Certification Form:** The PHA shall provide the tenant with the “Notice of Occupancy Rights under VAWA and the certification form described under 24 CFR 5.2005(a)(1) and (2).

f. **Protection for victims of Domestic Violence, Dating Violence, Sexual Assault, or Stalking:**

(1) The landlord or the PHA will not deny admission to, deny assistance under, terminate from participation in, or evict the Tenant on the basis of or as a direct result of the fact that the Tenant is or has been a victim of domestic violence, dating violence, sexual assault, or stalking, if the Tenant otherwise qualifies for admission, assistance, participation, or occupancy. 24 CFR 5.2005(b)(1).

(2) The tenant shall not be denied tenancy or occupancy rights solely on the basis of criminal activity engaged in by a member of the Tenant’s Household or any guest or Other Person Under the Tenant’s Control, if the criminal activity is directly related to domestic violence, dating violence, sexual assault, or stalking, and the Tenant or an Affiliated Individual of the Tenant is the victim or the threatened victim of domestic violence, dating violence, sexual assault, or stalking. 24 CFR 5.2005(b)(2).

(3) An incident or incidents of actual or threatened domestic violence, dating violence, sexual assault or stalking will not be construed as serious or repeated violations of the lease by the victim or threatened victim of the incident. Nor shall it not be construed as other “good cause” for termination of the lease, tenancy, or occupancy rights of such a victim or threatened victim. 24 CFR 5.2005(c)(1) and (c)(2).

g. **Compliance with Court Orders:** Nothing in this Addendum will limit the authority of the landlord, when notified by a court order, to comply with the court order with respect to the rights of access or control of property (including civil protection orders issued to protect a victim of domestic violence, dating violence, sexual assault, or stalking) or with respect to the distribution or possession of property among members of the Tenant’s Household. 24 CFR 5.2005(d)(1).

h. **Violations Not Premised on Domestic Violence, Dating Violence, Sexual Assault, or Stalking:** Nothing in this section shall be construed to limit any otherwise available authority of the Landlord to evict or the public housing authority to terminate the assistance of a Tenant for any violation not premised on an act of domestic violence, dating violence, sexual assault, or stalking that is in question against the Tenant or an Affiliated Individual of the Tenant. However, the Landlord or the PHA will not subject the tenant, who is or has been a victim of domestic violence, dating violence, sexual assault, or stalking, to a more demanding standard than other tenants in determining whether to evict or terminate assistance. 24 CFR 5.2005(d)(2).

i. **Actual and Imminent Threats:**

(1) Nothing in this section will be construed to limit the authority of the Landlord to evict the Tenant if the Landlord can demonstrate that an “actual and imminent threat” to other tenants or those employed at or providing service to the property would be present if the Tenant or lawful occupant is not evicted. In this context, words, gestures, actions, or other indicators will be construed as an actual and imminent threat if they meet the following standards for an actual and imminent threat: “Actual and imminent threat” refers to a physical danger that is real, would occur within an immediate time frame, and could result in death or serious bodily harm. In determining whether an individual would pose an actual and imminent threat, the factors to be considered include: the duration of the risk, the nature and severity of the potential harm, the likelihood that the potential harm will occur, and the length of time before the potential harm would occur. 24 CFR 5.2005(d)(3).

(2) If an actual and imminent threat is demonstrated, eviction should be used only when there are no other actions that could be taken to reduce or eliminate the threat, including, but not limited to, transferring the victim to a different unit, barring the perpetrator from the property, contacting law enforcement to increase police presence, developing other plans to keep the property safe, or seeking other legal remedies to prevent the perpetrator from acting on a threat. Restrictions predicated on public safety cannot be based on stereotypes, but must be tailored to particularized concerns about individual residents. 24 CFR 5.2005(d)(4).

j. **Emergency Transfer:** A tenant who is a victim of domestic violence, dating violence, sexual assault, or stalking may request an emergency transfer in accordance with the PHA’s emergency transfer plan. 24 CFR 5.2005(e). The PHA’s emergency transfer plan must be made available upon request, and incorporate strict confidentiality measures to ensure that the PHA does not disclose a tenant’s dwelling unit location to a person who committed or threatened to commit an act of domestic violence, dating violence, sexual assault, or stalking against the tenant;

For transfers in which the tenant would not be considered a new applicant, the PHA must ensure that a request for an emergency transfer receives, at a minimum, any applicable additional priority that is already provided to other types of emergency transfer requests. For transfers in which the tenant would be considered a new applicant, the plan must include policies for assisting a tenant with this transfer.

k. **Bifurcation:** Subject to any lease termination requirements or procedures prescribed by Federal, State, or local law, if any member of the Tenant’s Household engages in criminal activity directly relating to domestic violence, dating violence, sexual assault, or stalking, the Landlord may “bifurcate” the Lease, or remove that Household member from the Lease, without regard to whether that Household member is a signatory to the Lease, in order to evict, remove, or terminate the occupancy rights of that Household member without evicting, removing, or otherwise penalizing the victim of the criminal activity who is also a tenant or lawful occupant. Such eviction, removal, termination of occupancy rights, or termination of assistance shall be effected in accordance with the procedures prescribed by Federal, State, and local law for the termination of leases or assistance under the housing choice voucher program. 24 CFR 5.2009(a).

If the Landlord bifurcates the Lease to evict, remove, or terminate assistance to a household member, and that household member is the sole tenant eligible to receive assistance, the landlord shall provide any remaining tenants or residents a period of 30 calendar days from the date of bifurcation of the lease to:

- (1) Establish eligibility for the same covered housing program under which the evicted or terminated tenant was the recipient of assistance at the time of bifurcation of the lease;
 - (2) Establish eligibility under another covered housing program; or
 - (3) Find alternative housing.
- l. **Family Break-up:** If the family break-up results from an occurrence of domestic violence, dating violence, sexual assault, or stalking, the PHA must ensure that the victim retains assistance. 24 CFR 982.315.
- m. **Move with Continued Assistance:** The public housing agency may not terminate assistance to a family or member of the family that moves out of a unit in violation of the lease, with or without prior notification to the public housing agency if such a move occurred to protect the health or safety of a family member who is or has been a victim of domestic violence, dating violence, sexual assault, or stalking; and who reasonably believed they were imminently threatened by harm from further violence if they remained in the dwelling unit, or if any family member has been the victim of sexual assault that occurred on the premises during the 90-calendar-day period preceding the family's request to move.
- (1) The move is needed to protect the health or safety of the family or family member who is or has been a victim of domestic violence dating violence, sexual assault or stalking; and
 - (2) The family or member of the family reasonably believes that he or she was threatened with imminent harm from further violence if he or she remained in the dwelling unit. However, any family member that has been the victim of a sexual assault that occurred on the premises during the 90-calendar day period preceding the family's move or request to move is not required to believe that he or she was threatened with imminent harm from further violence if he or she remained in the dwelling unit. 24 CFR 982.354.
- n. **Confidentiality.**
- (1) The Landlord shall maintain in strict confidence any information the Tenant (or someone acting on behalf of the Tenant) submits to the Landlord concerning incidents of domestic violence, dating violence, sexual assault or stalking, including the fact that the tenant is a victim of domestic violence, dating violence, sexual assault, or stalking.
 - (2) The Landlord shall not allow any individual administering assistance on its behalf, or any persons within its employ, to have access to confidential information unless explicitly authorized by the Landlord for reasons that specifically call for these individuals to have access to the information pursuant to applicable Federal, State, or local law.
 - (3) The Landlord shall not enter confidential information into any shared database or disclose such information to any other entity or individual, except to the extent that the disclosure is requested or consented to in writing by the individual in a time-limited release; required for use in an eviction proceeding; or is required by applicable law.

10. Eviction by court action

The owner may only evict the tenant by a court action.

11. Owner notice of grounds

- a. At or before the beginning of a court action to evict the tenant, the owner must give the tenant a notice that specifies the grounds for termination of tenancy. The notice may be included in or combined with any owner eviction notice.
- b. The owner must give the PHA a copy of any owner eviction notice at the same time the owner notifies the tenant.
- c. Eviction notice means a notice to vacate, or a complaint or other initial pleading used to begin an eviction action under State or local law.

12. Lease: Relation to HAP Contract

If the HAP contract terminates for any reason, the lease terminates automatically.

13. PHA Termination of Assistance

The PHA may terminate program assistance for the family for any grounds authorized in accordance with HUD requirements. If the PHA terminates program assistance for the family, the lease terminates automatically.

14. Family Move Out

The tenant must notify the PHA and the owner before the family moves out of the unit.

15. Security Deposit

- a. The owner may collect a security deposit from the tenant. (However, the PHA may prohibit the owner from collecting a security deposit in excess of private market practice, or in excess of amounts charged by the owner to unassisted tenants. Any such PHA-required restriction must be specified in the HAP contract.)
- b. When the family moves out of the contract unit, the owner, subject to State and local law, may use the security deposit, including any interest on the deposit, as reimbursement for any unpaid rent payable by the tenant, any damages to the unit or any other amounts that the tenant owes under the lease.
- c. The owner must give the tenant a list of all items charged against the security deposit, and the amount of each item. After deducting the amount, if any, used to reimburse the owner, the owner must promptly refund the full amount of the unused balance to the tenant.
- d. If the security deposit is not sufficient to cover amounts the tenant owes under the lease, the owner may collect the balance from the tenant.

16. Prohibition of Discrimination

In accordance with applicable equal opportunity statutes, Executive Orders, and regulations, the owner must not discriminate against any person because of race, color, religion, sex, national origin, age, familial status or disability in connection with the lease. Eligibility for HUD's programs must be made without regard to actual or perceived sexual orientation, gender identity, or marital status.

17. Conflict with Other Provisions of Lease

- a. The terms of the tenancy addendum are prescribed by HUD in accordance with Federal law and regulation, as a condition for Federal assistance to the tenant and tenant's family under the Section 8 voucher program.
- b. In case of any conflict between the provisions of the tenancy addendum as required by HUD, and any other provisions of the lease or any other agreement between the owner and the tenant, the requirements of the HUD-required tenancy addendum shall control.

18. Changes in Lease or Rent

- a. The tenant and the owner may not make any change in the tenancy addendum. However, if the tenant and the owner agree to any other changes in the lease, such changes must be in writing, and the owner must immediately give the PHA a copy of such changes. The lease, including any changes, must be in accordance with the requirements of the tenancy addendum.
- b. In the following cases, tenant-based assistance shall not be continued unless the PHA has approved a new tenancy in accordance with program requirements and has executed a new HAP contract with the owner:
 - (1) If there are any changes in lease requirements governing tenant or owner responsibilities for utilities or appliances;
 - (2) If there are any changes in lease provisions governing the term of the lease;
 - (3) If the family moves to a new unit, even if the unit is in the same building or complex.
- c. PHA approval of the tenancy, and execution of a new HAP contract, are not required for agreed changes in the lease other than as specified in paragraph b.
- d. The owner must notify the PHA of any changes in the amount of the rent to owner at least sixty days before any such changes go into effect, and the amount of the rent to owner following any such agreed change may not exceed the reasonable rent for the unit as most recently determined or redetermined by the PHA in accordance with HUD requirements.

19. Notices

Any notice under the lease by the tenant to the owner or by the owner to the tenant must be in writing.

20. Definitions

Contract unit. The housing unit rented by the tenant with assistance under the program.

Family. The persons who may reside in the unit with assistance under the program.

HAP contract. The housing assistance payments contract between the PHA and the owner. The PHA pays housing assistance payments to the owner in accordance with the HAP contract.

Household. The persons who may reside in the contract unit. The household consists of the family and any PHA-approved live-in aide. (A live-in aide is a person who resides in the unit to provide necessary supportive services for a member of the family who is a person with disabilities.)

Housing quality standards (HQS). The HUD minimum quality standards for housing assisted under the Section 8 tenant-based programs.

HUD. The U.S. Department of Housing and Urban Development.

HUD requirements. HUD requirements for the Section 8 program. HUD requirements are issued by HUD headquarters, as regulations, Federal Register notices or other binding program directives.

Lease. The written agreement between the owner and the tenant for the lease of the contract unit to the tenant. The lease includes the tenancy addendum prescribed by HUD.

PHA. Public Housing Agency.

Premises. The building or complex in which the contract unit is located, including common areas and grounds.

Program. The Section 8 housing choice voucher program.

Rent to owner. The total monthly rent payable to the owner for the contract unit. The rent to owner is the sum of the portion of rent payable by the tenant plus the PHA housing assistance payment to the owner.

Section 8. Section 8 of the United States Housing Act of 1937 (42 United States Code 1437f).

Tenant. The family member (or members) who leases the unit from the owner.

Voucher program. The Section 8 housing choice voucher program. Under this program, HUD provides funds to a PHA for rent subsidy on behalf of eligible families. The tenancy under the lease will be assisted with rent subsidy for a tenancy under the voucher program.